

alleged any contractual provision that would entitle them to attorney's fees. Similarly, Defendants move to strike Plaintiffs' prayer for "statutory damages and liquidated penalties."

While Defendant is correct that Plaintiffs have not alleged any contractual provision that would entitle them to attorneys' fees, unsupported attorneys' fee allegations need not be stricken pursuant to a motion to strike, since later discovery may reveal a basis for their recovery. (*Camenisch v. Superior Court* (1996) 44 Cal.App.4th 1689, 1699.) In addition, "[t]here is no requirement that a party plead that it is seeking attorney fees, and there is no requirement that the ground for a fee award be specified in the pleadings." (*Yassin v. Solis* (2010) 184 Cal.App.4th 524, 533.) Attorneys' fees are recoverable as costs if authorized by statute, contract or law. (CCP, § 1033.5, subd. (a)(10).)

As a consequence, Defendant's motion is **denied** with respect to the attorney's fees allegations. However, for similar reasons as the attorney's fees allegations, the Court **denies** the motion as to this portion of Plaintiffs' prayer for relief.

16. 9:00 AM CASE NUMBER: C25-02933
CASE NAME: OFEILA NOROOZI VS. SANDEEP WALIA, MD
HEARING ON DEMURRER TO: FIRST AMENDED COMPLAINT
FILED BY: LUCILE SALTER PACKARD CHILDREN'S HOSPITAL AT STANFORD
TENTATIVE RULING:

Before the Court is Lucile Salter Packard Children's Hospital at Stanford ("Defendant" or "LSPCH")'s Demurrer to Plaintiff Ofelia Noroozi, Payman Noroozi, and Sahar Noroozi (collectively, "Plaintiffs") First Amended Complaint.

Defendant demurs to Plaintiffs' causes of action for (3) wrongful death, (4) Negligent infliction of emotional distress (Ofelia Noroozi), (5) Negligent infliction of emotional distress (Payman Noroozi), (6) Negligent infliction of emotional distress (Sahar Noroozi), (7) fraud, and (8) tort per se on several grounds.

For the following reasons, the Demurrer is **overruled-in-part** and **sustained-in-part** (with leave to amend) as described further below.

Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008)

161 Cal.App.4th 242, 247.)

Analysis

3. Wrongful Death

Defendant argues that Plaintiffs have failed to allege facts sufficient to state a cause of action for wrongful death against LSPCH.

“A cause of action for wrongful death is ... a statutory claim. (Code Civ. Proc., §§ 377.60–377.62.) Its purpose is to compensate specified persons—heirs—for the loss of companionship and for other losses suffered as a result of a decedent’s death.” (*Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1263.) “The elements of the cause of action for wrongful death are the tort (negligence or other wrongful act), the resulting death, and the damages, consisting of the *pecuniary loss* suffered by the *heirs*.” (*Ibid.*, original italics.)

Typically, the underlying tort which allegedly resulted in wrongful death was professional negligence (i.e., medical malpractice). “The elements of a cause of action for medical malpractice are: (1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage.” (*Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305 (*Johnson*).)

Defendant argues that Plaintiffs fail to allege Decedent received any care or treatment from LSPCH, that LSPCH owed Decedent a duty of care, that LSPCH breached a duty of care, or that LSPCH caused Decedent’s death. Defendant argues that at best, Plaintiffs allege LSPCH and JMH formed CCPV and that LSPCH “did business with Defendant JMH.” (FAC at 4:14-23.)

In opposition, Plaintiffs argue that the underlying tort against LSPCH is false and fraudulent advertising, relying on *Boeken v. Philip Morris, Inc.* (2005) 127 Cal.App.4th 1640, 1700 (“This is basically a case of wrongful death resulting from fraudulently marketing a defective product.”). Plaintiffs point to their allegations at FAC ¶¶ 15-20, 49(B)-(C), 66-91, 119(C), 148-161, 165[1]-166[1], 167[2]-170 and Ex. 2, 4, 5, 6.

Plaintiffs also rely on *Stevens v. Parke, Davis & Co.* (1973) 9 Cal.3d 51, 68-69 (*Stevens*). In *Stevens*, the plaintiffs’ family member died after her physician prescribed a drug manufactured by Parke, Davis, due to a condition induced by the drug. In addition to suing the prescribing physician, the plaintiffs successfully sued Parke, Davis for “overpromoting” the drug, and “watering down” the warnings concerning the drug’s link to the fatal condition. (*Id.* at p. 66.) In the Supreme Court, the drug company argued its overpromotion and watered-down warnings were not proven to be the cause of death because the prescribing doctor admitted he was aware that the drug had been linked to the condition and that its “prolonged administration carried some danger of fatality.” (*Id.* at p. 67, fn. 15; *id.* at pp. 66–67.) The doctor had also testified that he obtained that information from articles in medical journals and from discussions with fellow physicians, and he could not remember specific

instances in which he received any information, promotional or otherwise, directly from Parke, Davis, although he had received visits from drug salesmen and read journals which contained advertisements for the drug. (*Id.* at p. 68, fn. 16.) The court affirmed the jury's verdict. It concluded there was "adequate circumstantial evidence in the record ... to support a reasonable inference by the jury that [the physician] was induced to prescribe the drug for [the decedent] because of Parke, Davis' overpromotion. Like many others of the profession, he had been exposed to the promotional tactics employed by Parke, Davis. It is reasonable to assume that the company's efforts consciously or subconsciously influenced him." (*Id.*)

Defendant has not cited any authority, and the Court is not aware of any, that would preclude a wrongful death claim based on alleged fraudulent marketing. The Court is also not aware of any authority that would require Plaintiffs to separately plead a fraudulent marketing claim rather than predicated a wrongful death claim on fraudulent marketing allegations. As a consequence, Defendant's demurrer to Plaintiffs' wrongful death claim is **overruled**.

4, 5, 6. Negligent Infliction of Emotional Distress

Defendant argues that Plaintiffs have not alleged facts sufficient to state their causes of action for negligent infliction of emotional distress.

"[A] plaintiff may recover damages for emotional distress caused by observing the negligently inflicted injury of a third person if, but only if, said plaintiff: (1) is closely related to the injury victim; (2) is present at the scene of the injury producing event at the time it occurs and is then aware that it is causing injury to the victim; and (3) as a result suffers serious emotional distress-a reaction beyond that which would be anticipated in a disinterested witness and which is not an abnormal response to the circumstances." (*Thing v. La Chusa* (1989) 48 Cal.3d 644, 667-668; accord *Downey v. City of Riverside* (2024) 16 Cal.5th 539, 550.) "Neither our precedent nor considerations of tort policy support requiring plaintiffs asserting bystander emotional distress claims to show contemporaneous perception of the causal link between the defendant's conduct and the victim's injuries." (*Downey, supra*, 16 Cal.5th at p. 560.) Nevertheless, the Supreme Court's analysis in *Bird v. Saenz* (2002) 28 Cal.4th 910 "remains the controlling precedent for negligent infliction of emotional distress claims arising from the provision of deficient medical care to a close relative." (*Id.* at p. 560, fn. 11.)

"*Bird* placed particular emphasis on how difficult-often impossible-it generally is for laypersons to recognize in the moment that a course of medical treatment is causing injury. Even when plaintiffs are present at the scene of the injury-causing event and observe conduct that they later realize caused injury to a close relative, their lack of medical knowledge will ordinarily keep them from being 'then aware that it [was] causing injury to the victim.' [Citation]." (*Downey, supra*, 16 Cal.5th at p. 554.) "In such cases, the injury-causing events or conduct are not traumatizing because they are perceived as injury-causing only in retrospect, when the observer is affected by the event's results." (*Ibid.*) "*Bird* itself made clear that the injury caused by medical negligence is different in this regard from many other types of injury- producing events. We explained that the invisibility of injury-causing events

resulting from deficient medical care makes a typical medical negligence case distinguishable from, for instance, a case arising from ‘an explosion, traffic accident, or electrocution.’ [Citation].” (*Ibid.*)

Here, Plaintiffs allege that Amin Noroozi died following a traumatic diving accident “due to Defendants’ gross negligence in managing life-threatening complications that should have been anticipated and treated according to established medical protocols.” (FAC at ¶ 1.) They allege several “systemic failures in post-surgical care of Amin Noroozi’s spinal cord injury” (*id.* at 16:9) including “treat[ing] Amin with multiple drugs that were contraindicated for his specific condition” (*id.* at 17:10-11) which “exacerbated his cardiovascular instability and contributed to his deterioration.” (*id.* at ¶ 52(A).) They also allege that “Amin experienced severe thermoregulatory dysfunction” as a result of Defendants failure to implement “appropriate temperature monitoring and cooling protocols from the outset.” (*id.* at ¶ 52(B).) Plaintiffs allege that Defendants inadequately responded to Amin Noroozi’s severe hypokalemia and failed to adequately manage his sodium levels. (FAC at ¶ 52(D).) Plaintiffs further allege Defendants failed to implement basic infection screening protocols (*id.* at ¶ 52(E)), exacerbated decedent’s acute kidney injury (*id.* at ¶ 52(F)), and that Defendants “failed to properly assess and treat neurogenic shock resulting from Amin’s high cervical injury.” (*id.* at ¶ 52(G).

Plaintiffs also allege that Defendants failed to “effectively address sepsis, a 109-degree temperature, and unbalanced potassium levels[.]” (*id.* at ¶ 128.) They further allege that Ofelia Noroozi, Payman Noroozi, and Sahar Noroozi were each at Amin Noroozi’s bedside when his fever spiked to 109 degrees and he was not provided with any intervention besides Ibuprofen. (*id.* at ¶¶ 131, 138, 144.)

The Supreme Court in *Bird* drew an important distinction between circumstances involving unperceived medical errors in providing treatment and the circumstances in *Ochoa v. Superior Court* (1985) 39 Cal.3d 159, where the “injury-producing event was the failure of custodial authorities to respond significantly to symptoms obviously requiring immediate medical attention.” (*Bird, supra*, 28 Cal.4th at pp. 919-920.) In drawing this distinction, the Court explained that “[s]uch a failure to provide medical assistance, as opposed to a misdiagnosis, unsuccessful treatment, or treatment that turns out to have been inappropriate only in retrospect, is not necessarily hidden from the understanding awareness of a layperson.” (*id.* at p 920.) Although Plaintiffs argue that the alleged conduct in their amended complaint falls within the former category (see Opp. at 6:18-24), the pleaded facts appear to place the action within the latter category. Plaintiffs’ allegations suggest continued misdiagnosis, unsuccessful treatment, and use of inappropriate treatments of the decedent during his hospitalization rather than a complete failure to diagnose his condition or provide any treatment to him. (*Bird, supra*, 28 Cal.4th at pp. 921 [“In any event, a rule permitting bystanders to sue for NIED on account of unperceived medical errors hidden in a course of treatment cannot be reconciled with *Thing’s* requirement that the plaintiff be aware of the connection between the injury-producing event and the injury.”].)

For these reasons, Defendant’s demurrer to the fourth, fifth, and sixth causes of action for negligent infliction of emotional distress is **sustained**, with leave to amend.

7. Fraud

Defendant demurs to Plaintiffs' cause of action for fraud on the grounds that it lacks the requisite specificity.

"The elements of fraud are misrepresentation, knowledge of falsity, intent to induce reliance on the misrepresentation, justifiable reliance on the misrepresentation, and resulting damages." (*Reeder v. Specialized Loan Servicing LLC* (2020) 52 Cal.App.5th 795, 803 [citing *Lazar v. Superior Court* (1996) 12 Cal.4th 631].)

"In California, fraud must be pled specifically; general and conclusory allegations do not suffice." (*Lazar, supra*, 12 Cal.4th at p. 645.) The particularity requirement necessitates that facts be pleaded that show how, when, where, to whom, and by what means of the representations that were allegedly tendered. (*Ibid.*) Further, "[a] plaintiff's burden in asserting a fraud claim against a corporate employer is even greater. In such a case, the plaintiff must 'allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.'" (*Id.* [quoting *Tarmann v. State Farm Mutual Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157].)

Plaintiffs' FAC lacks this specificity, particularly with respect to LSPCH. Plaintiffs must allege facts as to fraudulent representations made by LSPCH – specifically, who made fraudulent representations on behalf of LSPCH and their authority to speak. (See *Lazar, supra*, 12 Cal.4th at p. 645; *Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1060.) Furthermore, it does not appear from the nature of Plaintiffs' allegations that Defendant must necessarily possess full information concerning the facts of the controversy so as to warrant the Court's application of a lesser standard of specificity to this fraud-based cause of action. Thus, the Court finds that Plaintiffs have failed to allege sufficient facts to state a cause of action for "fraud by intentional misrepresentation and concealment; constructive fraud."

The demurrer to the seventh cause of action is **sustained**, with leave to amend.

8. Tort per se

Finally, Defendant demurs to Plaintiffs' cause of action "tort per se." The statutory bases of Plaintiffs tort per se claim are alleged violations of the Business and Professions Code as well as Civil Code section 1770(a)(2) through (5).

The UCL broadly prohibits "any unlawful, unfair or fraudulent business act or practice" (Bus. & Prof. Code § 17200.) "Because the statute is framed in the disjunctive, a business practice need only meet one of the three criteria to be considered unfair competition." (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1471.) First, unlawful practices include "any practices forbidden by law, be it civil or criminal, federal, state, or municipal, statutory, regulatory, or court-made." (*Saunders v. Superior Court* (1994) 27 Cal.App.4th 832, 838-39.) "It is not necessary that the predicate law provide for private civil enforcement." (*Id.* at 839.) Second, unfair practices are those "whose harm to the victim outweighs its benefits." (*Ibid.*) Third, fraudulent practices extend beyond those covered by the

common law tort and include any practices that are likely to deceive members of the public. (*Buller v. Sutter Health* (2008) 160 Cal.App.4th 981, 986.) The UCL may only be privately enforced "by a person who has suffered injury in fact and has lost money or property as a result of the unfair competition." (Bus. & Prof. Code § 17204.)

Here, Plaintiffs eighth cause of action identifies Business Code §§ 17500, 17508(a), 17200 and Civil Code section 1770(a)(2) through (5). Rather than allege the essential elements of claims under those sections in the eighth cause of action itself, the Court presumes the Plaintiffs believe their general allegations are sufficient to state violations of each of these statutes. Plaintiffs also concede in their opposition that their theory of UCL violation against LSPCH is premised on a sort of joint tortfeasor/vicarious liability theory with John Muir Health—specifically, they argue that JMH fraudulently advertised its skills, and that LSPCH “acted in concert with JMH in committing the fraudulent acts alleged.” (Opp. at 12-14.)

The Court is not aware of any authority, and Plaintiffs have not cited any, that would support this theory of liability in UCL claims. Their concession that the fraudulent acts alleged in the FAC are only as to John Muir Health is fatal to their UCL (and Civil Code) claims against LSPCH.

The demurrer to the eighth cause of action is **sustained**, with leave to amend.

17. 9:00 AM CASE NUMBER: C25-02933
CASE NAME: OFEILA NOROOZI VS. SANDEEP WALIA, MD
***HEARING ON MOTION IN RE: TO STRIKE PLAINTIFFS' FIRST AMENDED COMPLAINT**
FILED BY: LUCILE SALTER PACKARD CHILDREN'S HOSPITAL AT STANFORD
TENTATIVE RULING:

Before the Court is Lucile Salter Packard Children’s Hospital at Stanford (“Defendant” or “LSPCH”)’s motion to strike portions of Plaintiff Ofelia Noroozi, Payman Noroozi, and Sahar Noroozi (collectively, “Plaintiffs”) First Amended Complaint. Plaintiffs oppose the Motion.

For the following reasons, the Motion is **granted-in-part** and **denied-in-part**, with leave to amend.

Legal Standard

California Civil Code (“CC”) § 3294 provides in relevant part:

In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant...

(1) “Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and